

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS AND
THE BOARD OF ADDICTION COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2018-8876 & 2018-8877

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO AND THE CERTIFICATION TO
PRACTICE ADDICTION COUNSELING IN THE STATE OF COLORADO OF MARTHA AMOS,
LICENSE NO. LPC 12028, CERTIFICATION NO. ACC 7226,

Respondent.

IT IS HEREBY STIPULATED by and Between the State Board of Licensed
Professional Counselor Examiners and the State Board of Addiction Counselor
Examiners (together, "Boards") and Martha Amos ("Respondent"), as follows:

1. Respondent was licensed to practice as a professional counselor ("LPC")
in the State of Colorado on July 30, 2014, having been issued license number LPC
12028, and is currently so licensed. Respondent was certified to practice as an
addiction counselor ("CAC III") in the State of Colorado on June 6, 2011, having been
issued certification number ACC 7226, and is currently so certified.
2. The Boards have jurisdiction over Respondent and the subject matter of
this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for
a settlement of all matters arising out of the complaint in case numbers 2018-8876
and 2018-8877 without the necessity of holding a formal hearing. This Order is a full
and final resolution of case numbers 2018-8876 and 2018-8877. This Order does not
resolve any other cases, complaints, or matters, known or unknown to the Boards or
Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Beginning on or around 2010, Respondent provided therapy to KC.
 - b. Respondent failed to advocate for KC's spouse by not referring the
spouse to another counselor during divorce proceedings.

c. Respondent referred to herself as a psychologist on LinkedIn.

5. By virtue of the admissions in paragraph 4 above, Respondent admits and the Boards find that Respondent violated sections 12-245-218 and 12-245-224(1)(b), (i), and (m), C.R.S., which state:

12-245-218. Title use restrictions. A psychologist, social worker, marriage and family therapist, professional counselor, or addiction counselor may only use the title for which he or she is licensed, certified, or registered under this article 245. Except as provided in section 12-245-306 (3), no other person shall hold himself or herself out to the public by any title or description of services incorporating the terms "licensed clinical social worker", "clinical social worker", "LCSW", "licensed social worker", "LSW", "marriage and family therapist", "LMFT", "professional counselor", "LPC", "psychologist", "psychologist candidate", "psychology", "psychological", "addiction counselor", "licensed addiction counselor", "LAC", "certified addiction counselor", or "CAC", and no other person shall state or imply that he or she is licensed to practice social work, marriage and family therapy, professional counseling, psychology, or addiction counseling. Nothing in this section shall prohibit a person from stating or using the educational degrees that the person has obtained.

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article 245, an applicable provision of article 20 or 30 of this title 12, a rule promulgated pursuant to this article 245 or any order of a board established pursuant to this article 245;

(i) Has maintained relationships with clients that are likely to impair the person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives;

(m) Has failed to obtain a consultation or perform a referral when the failure is not consistent with generally accepted standards of care.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Boards believes is necessary to protect the public health, safety, and welfare.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 4 and 5, the Boards hereby admonish Respondent for violations of sections 12-245-218 and 12-245-224(1)(b), (i), and (m), C.R.S. This Order is effective as a Letter of Admonition, set forth by section 12-20-404(4), C.R.S. As part of the admonishment, Respondent agrees to the following terms as a Board Order:

CONTINUING EDUCATION

8. Within twelve (12) months of the effective date of this Order, Respondent must successfully complete twenty (20) hours of Board-approved professional continuing education ("CE") courses in the areas of boundaries, ethics, and professional practice. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Boards. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or certification or to meet any other licensure or certification requirements.

TERMS AND CONDITIONS

9. Respondent will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

10. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

11. In the event Respondent relocates at any time prior to completing the terms of this Order, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

12. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing,

pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

13. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

14. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

15. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

16. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

17. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

18. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

19. This Order shall be admissible as evidence at any hearing held before the Boards.

20. This Order shall be a public record in the custody of the Boards.

AGREED TO AND ACCEPTED BY:

RESPONDENT



MARTHA AMOS
LICENSE No. LPC 12028
CERTIFICATION No. ACC 7226

APPROVED AS TO FORM
FOR RESPONDENT



Richard E. Lane, Esq.
Wegener Scarborough Young &
Hockensmith LLP

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS AND THE STATE
BOARD OF ADDICTION COUNSELOR
EXAMINERS



SAM DELP
Senior Program Director

Effective this 30 day of January,
2020.